

in 1972 when the decision issued in *Furman*, invalidating "the imposition and carrying out" of discretionary death sentences. *Id.*, at 239. Rather, he argues that the retroactive application of *Furman* to his no-parole commutation is required because the imposition of the death sentence was the indispensable vehicle through which he became subject to his present sentence. In other words, the no-parole condition could not now exist had the court-martial before which Schick was tried not imposed the death penalty.

The relationship between the death sentence and the condition is clear. Article 118 of the Uniform Code of Military Justice (UCMJ) ² authorizes only two sentences for the crime of premeditated murder: death or life imprisonment which entails at least the possibility of parole. Confinement without possibility of parole is unknown to military law; ³ it is not and has never been authorized for any UCMJ offense, 10 U. S. C. §§ 877-934; Manual for Courts-Martial, 34 Fed. Reg. 10502 (1969). In short, the penal restriction of the commutation was a creature of Presidential clemency made possible only

² Article 118, 10 U. S. C. § 918, reads:

"Any person subject to this code who, without justification or excuse, unlawfully kills a human being, when he—

"(1) has a premeditated design to kill;

"shall suffer death or imprisonment for life as a court-martial may direct." May 5, 1950, c. 169, § 1, 64 Stat. 140.

³ Military prisoners incarcerated in federal penitentiaries are governed by the same parole statutes and regulations applicable to all federal prisoners. Under the federal parole eligibility statute, 18 U. S. C. §§ 4202-4203 (1970 ed. and Supp. II), petitioner, an inmate for 20 years at Lewisburg, now has satisfied the 15-year prerequisite for parole consideration. See 10 U. S. C. § 858. Likewise, if Schick had been confined in a military facility he would now be eligible for parole under 10 U. S. C. §§ 952-953.